* * *

The judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE JACKSON, concurring in the judgment.

I agree with the Court that Delaware's affidavit requirement cannot apply in federal court. I write separately because, in my view, the relevant conflicts are with Federal Rules of Civil Procedure 3 and 12, not Rule 8.

I

As the majority explains, Delaware's law is, at bottom, an "affidavit requirement." *Ante*, at 190. If a medical malpractice plaintiff wants her complaint deemed "filed" and her case docketed, the statute mandates that an affidavit of merit signed by a medical professional (or a motion for an extension of time to file the affidavit) must accompany the complaint. See Del. Code, Tit. 18, § 6853(a)(1) (2025). By contrast, the Federal Rules require no such additional filing. Rather, "[a] civil action is commenced by filing a complaint with the court." Fed. Rule Civ. Proc. 3.

Page Proof Pending Publication

Thus, § 6853 and Rule 3 conflict regarding the requirements to "commence" a medical malpractice action. If a federal court were to follow Delaware's law, a plaintiff would have to do more than merely tender the complaint in order for his medical malpractice lawsuit to be filed and docketed. But, under the language of Rule 3, civil suits commence as soon as the complaint—and only the complaint—has been filed by the plaintiff. In my view, this clash warrants reversal here.

As the majority explains, our cases make clear beyond cavil that "a valid [Federal] Rule of Civil Procedure displaces contrary state law." *Ante*, at 192. Thus, the nub of the conflict inquiry is to determine whether the State's requirement

is, in fact, contrary to a Federal Rule. Over time, we have expressed this central inquiry in various ways. See, *e. g.*, *Hanna* v. *Plumer*, 380 U. S. 460, 472 (1965) (asking whether "the applicable Federal Rule is in direct collision with the [state] law"); *Burlington Northern R. Co.* v. *Woods*, 480 U. S. 1, 4–5 (1987) (asking whether the scope of the Federal Rule is "'sufficiently broad'" to "'control the issue'" before the Court, "thereby leaving no room for the operation" of the state law (quoting *Walker* v. *Armco Steel Corp.*, 446 U. S. 740, 749–750, and n. 9 (1980))). But as the majority acknowledges, our most up-to-date approach to identifying the necessary conflict is to ask whether the Federal Rule and the state statute "attemp[t] to answer the same question." *Shady Grove Orthopedic Associates, P. A.* v. *Allstate Ins. Co.*, 559 U. S. 393, 399 (2010); see also *ante*, at 192.[1]

Per *Shady Grove*, once a conflict between the State's requirement and a Federal Rule has been identified, the Federal Rule displaces the State's requirement so long as the

Page Proof Pending Publication

[1] To the extent that the Court suggests that the Federal Rule's plain text is all that matters when answering this question, that is not what our precedents hold. In *Gasperini* v. *Center for Humanities, Inc.*, 518 U. S. 415 (1996), we explained that Federal Rules must be interpreted not solely based on their text—as the much earlier case of *Walker* v. *Armco Steel Corp.* had suggested in a footnote—but also "with sensitivity to important state interests and regulatory policies," 518 U. S., at 427, n. 7. The majority opinion in *Shady Grove* subsequently criticized *Gasperini*'s "search for state interests and policies that are 'important'" as "standardless." 559 U. S., at 405, n. 7. But five Justices in that case (*i. e.*, a majority) agreed nevertheless with *Gasperini*'s approach to interpreting the Federal Rules in this context. See 559 U. S., at 437 (Ginsburg, J., dissenting) (writing for three other Justices that the Court should "continue to interpret Federal Rules with awareness of, and sensitivity to, important state regulatory policies"); *id.*, at 418 (Stevens, J., concurring in part and concurring in judgment) (explaining that the Federal Rules "must be interpreted with some degree of 'sensitivity to important state interests and regulatory policies'" (quoting *Gasperini*, 518 U. S., at 427, n. 7)). So, under our precedents, courts must be mindful of state interests and policies when determining whether a Federal Rule conflicts with state law.

Rule is "valid," meaning that it "governs only 'the manner and the means' by which the litigants' rights are 'enforced.'" 559 U. S., at 407 (plurality opinion) (quoting *Mississippi Publishing Corp.* v. *Murphree*, 326 U. S. 438, 446 (1946)); see also 28 U. S. C. § 2072(b) (Rules Enabling Act). And for similar reasons to those given in Part II–B of the majority opinion, Rule 3 easily satisfies this standard. See *ante*, at 198–199; see also *Shady Grove*, 559 U. S., at 407 (plurality opinion) (noting that we have "rejected every statutory challenge to a Federal Rule that has come before us").

Accordingly, Delaware's affidavit requirement cannot apply in federal court.

II

The majority and I start in the same place and ultimately reach the same conclusion, but we have taken different paths, marked by different assumptions and nuances. I agree with the majority that the first step of today's analysis is to identify the relevant conflict by ascertaining the question that the Delaware law and the Federal Rule "attemp[t] to answer." *Shady Grove*, 559 U. S., at 399; see *ante*, at 192. But I disagree that, in this case, "the disputed question is whether Berk's lawsuit may be dismissed because his complaint was not accompanied by an expert affidavit." *Ante*, at 192–193. Here is why.

Page Proof Pending Publication

A

First and foremost, that formulation of the question assumes that Berk's lawsuit has already been properly accepted by the court clerk (*i. e.*, filed and docketed) and thus that § 6853 is answering whether the "lawsuit may be dismissed" for want of the required affidavit. *Ante*, at 192. But that assumption jumps the gun. Delaware's law states that "[n]o health-care negligence lawsuit shall be *filed* in this State unless the complaint is accompanied by: (1) [a]n affidavit of merit" or (2) "a motion to extend the time to file said affidavit." § 6853(a)(1) (emphasis added). The statute fur-

ther specifies that "[i]f the required affidavit does not accompany the complaint or if a motion to extend the time to file said affidavit . . . has not been filed with the court, then the . . . clerk of the court shall *refuse to file* the complaint and it shall not be *docketed* with the court." *Ibid.* (emphasis added).

Accordingly, the text of § 6853 makes clear that the statute's first order of business is not to address the requirements for dismissal of an affidavit-free lawsuit such as Berk's. Instead, § 6853 most directly answers the threshold question of what is required *to start* a civil action for medical malpractice under Delaware law. Delaware's response is that the plaintiff must submit an affidavit of merit, or a motion for an extension of time to file such affidavit, because (to repeat) the clerk cannot "file the complaint" or "docke[t]" the case without that additional filing. § 6853(a)(1).

Page Proof Pending Publication

Rule 3 provides a completely different answer to the question of what is required to start a medical malpractice case. As explained above, under that Rule, "[a] civil action is commenced by filing a complaint with the court"—period. That answer leaves "no room" for Delaware's insistence that an affidavit of merit (or a motion for an extension) must be submitted in order to commence this kind of legal action. *Burlington*, 480 U. S., at 5. Indeed, Rule 3 uses the uncompromising, declarative phrase "is commenced," plainly indicating that Congress meant for the "filing [of] a complaint" to be both necessary *and sufficient* to begin any civil case (including a malpractice action) in federal court. Cf. *Walker*, 446 U. S., at 750, n. 10 ("'Rule 3 simply provides that an action is commenced by filing the complaint and has as its primary purpose the measuring of time periods that begin running from the date of commencement'" (quoting 4 C. Wright & A. Miller, Federal Practice and Procedure § 1057, p. 191 (1969))); *Hallstrom* v. *Tillamook County*, 493 U. S. 20, 26 (1989) (read-

ing Rule 3 to mean that "filing a complaint with the court" is synonymous with "fil[ing] suit").[2]

Resisting this conclusion, defendants rely on three cases to argue that "this Court has long found applicable in federal court" "state-law condition[s] on allowing suits to proceed." Brief for Respondent Beebe 26–27, and n. 11; see also Brief for Respondent Choy 36–37. But that argument mischaracterizes our past rulings. See *Cohen* v. *Beneficial Industrial Loan Corp.*, 337 U. S. 541 (1949); *Woods* v. *Interstate Realty Co.*, 337 U. S. 535 (1949); *Walker* v. *Armco Steel Corp.*, 446 U. S. 740.

The majority has already ably explained that defendants "substantially overread" *Cohen* for the proposition that "all state 'preconditions to proceeding' are consistent with the Federal Rules." *Ante,* at 195. I think *Walker* and *Woods* are also easily distinguishable.

Page Proof Pending Publication

[2] The majority contends that its dismissal-focused formulation of the question is the right one because, in this case, "Berk's lawsuit *has* already been filed and docketed," and "we granted certiorari" on the question "whether Berk's lawsuit may be dismissed." *Ante,* at 193, n. 1. That argument conflates the question presented with the "question" that, under *Shady Grove*, is supposed to serve as the linchpin of our conflict analysis. 559 U. S., at 401. The latter comes not from the facts of the case, but rather from our interpretations of the potentially conflicting state law and Federal Rule. So, while it may be that the *question presented* is "whether Berk's lawsuit may be dismissed," the relevant question for our *Shady Grove* analysis is "what is required to start a medical malpractice case," because that is the question that § 6853 and, as it happens, Rule 3, "attemp[t] to answer," *Id.*, at 399.

Nor is the majority correct that, regardless, I am "ultimately forced to grapple with the question whether Berk's lawsuit may be 'dismiss[ed].'" *Ante,* at 193, n. 1 (alteration in original). As I stated above, § 6853's conflict with Rule 3 is enough to hold that the law cannot apply in federal court. And, as I have shown, the Rule 3 analysis is about the commencement of the action, not its dismissal. Once we determine that § 6853 and Rule 3 answer the same commencement-related question, § 6853 cannot apply in federal court, meaning that Berk's lawsuit cannot be thwarted for failure to satisfy the requirements of that state law.

As with *Cohen*, respondents overstate the effect of *Walker*. There, we held that a federal court sitting in diversity must apply an Oklahoma law that deemed an action "commenced" upon service of the summons *for purposes of the State's statute of limitations*. 446 U. S., at 742. Rule 3, we explained, "governs the date from which various timing requirements of the Federal Rules begin to run, but does not affect state statutes of limitations." *Id.*, at 751. Here, by contrast, § 6853 and Rule 3 serve precisely the same function, in the same context: Both establish when a malpractice lawsuit is deemed initiated (*i. e.*, filed and docketed) for purposes of determining "the date from which various timing requirements of the Federal Rules begin to run." *Ibid.* That is precisely the kind of conflict that bars the application of state law in federal court under our precedents.[3]

Defendants' reliance on *Woods* is similarly unavailing. There, we held that a federal court sitting in diversity must apply a Mississippi law prohibiting out-of-state corporations from bringing suit in the State unless they designated an agent for service of process. 337 U. S., at 536, n. 1. Mississippi's law was enacted to ensure that only those out-of-state corporations that consented to being sued in Mississippi had the privilege of accessing Mississippi's courts. See *ibid.* In other words, Mississippi's law had a broad substantive purpose and effect that went well beyond what the Federal Rules addressed. That was why we had to wade through "*Erie*'s murky waters" to decide the conflicts question that case presented. See *Shady Grove*, 559 U. S., at 398; see

Page Proof Pending Publication

[3] Proving this point, another provision of the Delaware law, § 6853(a)(4), provides that a defendant is "not required to take any action with respect to the complaint . . . until 20 days after plaintiff has filed the affidavit." Under the Federal Rules, however, the deadline for a responsive act by the defendant is anchored to the filing of the complaint. See Fed. Rules Civ. Proc. 4(m) (a plaintiff must serve the complaint and summons "within 90 days after the complaint is filed") and 12(a)(1)(A)(i) (a defendant "must serve an answer . . . within 21 days after being served with the summons and complaint").

also *Erie R. Co.* v. *Tompkins*, 304 U. S. 64 (1938). Delaware's affidavit requirement, by contrast, is plainly procedural in scope and well within the territory of the Federal Rules.

In short, our precedents establish that when a state law and a valid Federal Rule conflict—because they answer the same procedural question—the State's requirement is inapplicable in federal court. Because § 6853 answers the same question about what is required to commence a medical malpractice action as the unquestionably valid Rule 3, Delaware's law must give way. See *Hanna*, 380 U. S., at 469–474.

B

If we accept, for the sake of argument, that the question Delaware's law attempts to answer is "whether [a medical malpractice complaint] may be dismissed because [it] was not accompanied by an expert affidavit," *ante*, at 192–193, a problem arises: The Federal Rule the majority points to does not answer that same question.

Page Proof Pending Publication

The majority discerns a conflict with Rule 8 by reasoning as follows. With respect to the dismissal-related question quoted above, Delaware's law says that such a complaint must be dismissed because the affidavit of merit is missing, whereas Rule 8 prescribes all "the information a plaintiff must present about the merits of his claim at the outset of litigation"—namely, "'a short and plain statement of the claim showing that [he] is entitled to relief.'" *Ante*, at 193 (quoting Fed. Rule Civ. Proc. 8(a)(2)). "By requiring no more than a statement of the claim," the majority continues, "Rule 8 establishes 'implicitly, but with unmistakable clarity,' . . . that evidence of the claim is *not* required." *Ante*, at 193.

The problem with this reasoning is not that it is based on "a negative inference" about Rule 8, *ante*, at 195, n. 2, but rather the inattentively capacious scope of that negative inference. I agree that Rule 8(a)'s finite list "preclude[s] courts" from imposing additional requirements. *Ibid.*; see *Leatherman* v. *Tarrant County Narcotics Intelligence and Coordination*

Unit, 507 U. S. 163, 168 (1993). But context is critical: Rule 8 does not purport to establish *all* that a medical malpractice plaintiff can be required to say about the merits of his claims at the beginning of the case, much less that nothing more than the filing of a complaint can be mandated. Rather, it (more narrowly) addresses what any "*pleading*" stating a claim for relief must contain. See Rule 8(a) ("A *pleading* that states a claim for relief must contain . . ." (emphasis added)). The majority neither holds nor suggests that §6853's affidavit of merit is, itself, a "pleading"; to the contrary, the majority admits that the affidavit is not. *Ante*, at 194. So, as I see it, Delaware's law—which prescribes what a plaintiff must submit *in addition to* his pleadings in order for his complaint to be filed and his case docketed—does not actually conflict with Rule 8.

The majority acknowledges this "pleading" problem and offers, apparently as a solution, yet another formulation of the question that Rule 8 is answering: Rule 8, it says, tells us "what information a plaintiff must provide about the merits of his claim." *Ante*, at 195. But, again, this description fails to acknowledge that Rule 8 operates entirely within a specific universe: the pleadings. The majority's unbounded characterization subtly frees Rule 8 from the constraint of its subject matter, allowing it to expand until it collides with Delaware's law.[4]

Page Proof Pending Publication

[4] The majority's description of Rule 8's work is inaccurate even if confined to the universe of pleadings. Rule 8 does not "addres[s] *what* information a plaintiff must provide about the merits of his claim" in the pleadings. *Ante*, at 195 (emphasis added). Instead, with respect to a pleading that states a claim for relief (as opposed to one that does not, see Rule 7), Rule 8 governs *how much* a plaintiff must say concerning his claim. Rule 8's primary purpose is to install a "simplified pleading system" that requires a complaint to include nothing more than "'short and plain statement[s]'" of the claim, the grounds for jurisdiction, and the relief sought. *Swierkiewicz* v. *Sorema N. A.*, 534 U. S. 506, 512, 514 (2002). In other words, Rule 8's innovation is the "short and plain" bit, not the substance of what is required to be stated in that manner.

When properly construed, Rule 8 addresses a particular (and particularly important) procedural question: "What must a pleading that states a claim for relief contain?"[5] In my view, this narrower formulation of the question—the one tethered to the required contents of a "pleading"—keeps Rule 8 within the bounds of its plain meaning, consistent with *Gasperini*'s command not to overread the Federal Rules at the expense of "important state interests and regulatory policies" in cases such as this one. *Gasperini* v. *Center for Humanities, Inc.*, 518 U. S. 415, 427, n. 7 (1996); see also n. 1, *supra*.

Accordingly, because § 6853 does not address or govern the required contents of a pleading, Delaware's law does not answer the same question as Rule 8. Instead, the State's affidavit requirement (which, incidentally, neither describes the affidavit of merit in relation to a plaintiff's obligation to state a claim for relief nor treats it as evidence) is an additional filing requirement for commencing any medical malpractice civil action under state law. See § 6853(a)(1) ("No healthcare negligence lawsuit shall be filed in [Delaware] unless the complaint is accompanied by . . . [a]n affidavit of merit"). Finding a Rule 8 conflict, as the majority does, thus requires contorting *both* Rule 8 and § 6853. There is no need to do so here, especially given the ready conflict with Rule 3 (discussed above) and Rule 12 (described below).[6]

Page Proof Pending Publication

---

[5] The answer, under the Rule, is (1) "a short and plain statement of the grounds for . . . jurisdiction," (2) "a short and plain statement of the claim showing that the pleader is entitled to relief," and (3) "a demand for the relief sought." Rule 8(a).

[6] To be sure, many Courts of Appeals have also relied on a conflict with Rule 8 to hold that state affidavit-of-merit laws like Delaware's do not apply in federal court. See *Albright* v. *Christensen*, 24 F. 4th 1039, 1048–1049 (CA6 2022); *Gallivan* v. *United States*, 943 F. 3d 291, 293 (CA6 2019); *Pledger* v. *Lynch*, 5 F. 4th 511, 519 (CA4 2021); *Young* v. *United States*, 942 F. 3d 349, 351 (CA7 2019). But a closer look at the relevant cases reveals that these courts, like the majority, got there by manipulating the

III

The majority and I appear to agree that Delaware's affidavit requirement—as interpreted by the Delaware Supreme Court—conflicts with Rule 12(d). See *ante*, at 193. That conflict suffices to displace § 6853's requirement. But to the extent that the majority ties its Rule 12 analysis to the purported Rule 8 conflict, see *ibid.*, I think the majority has gone further than it needs to, introducing incoherence in the process.

While the statute itself does not so specify, the Delaware Supreme Court has interpreted § 6853 to mean that (assuming the clerk of court accepts an affidavit-free medical malpractice action and dockets the case notwithstanding the statute's prohibition) "[t]he filing of a healthcare negligence action without the requisite affidavit of merit constitutes grounds of dismissal of medical negligence claims as a matter of law." *Hall* v. *Sorouri*, 996 A. 2d 793 (Del. 2010) (Table). That reading of Delaware law answers the question, "What can a court consider when dismissing a medical malpractice case?" Because "[t]he highest state court is the final authority on state law," *Fidelity Union Trust Co.* v. *Field*, 311 U. S. 169, 177 (1940), we must read this statute as that court does, *i. e.*, as establishing dismissal requirements for medical malpractice cases. Thus, if a valid Federal Rule answers that same dismissal question, § 6853 cannot govern in federal court. See *Shady Grove*, 559 U. S., at 398.

Page Proof Pending Publication

---

relevant question. In *Gallivan*, for example, the Sixth Circuit posed as the pertinent question: "[D]oes someone need an affidavit of merit to state a claim for medical negligence?" 943 F. 3d, at 293. This leading question not only ignores (as the majority does) that Rule 8 is solely about "pleadings," but, worse, also preordains a conflict by naming the very thing that the state law requires but the Federal Rule does not (*i. e.*, an affidavit). The Fourth and Seventh Circuits make the same error. See *Pledger*, 5 F. 4th, at 519 (asking "whether a medical malpractice plaintiff must provide pre-suit expert support for his claim"); *Young*, 942 F. 3d, at 351 (asking whether Rule 8 "require[s] attachments").

Enter Rule 12. As the majority correctly explains, Rule 12(b)(6) provides the "only . . . ground for dismissal based on the merits," and Rule 12(d) prohibits courts from considering "'matters outside the pleadings'" in deciding motions to dismiss brought under Rule 12(b)(6). *Ante*, at 193; see also *Stanley* v. *City of Sanford*, 606 U. S. 46, 49 (2025) (explaining that, under Rule 12(d), a judge considering a motion to dismiss must "take as true the well-pleaded facts in the plaintiff's complaint, . . . and [must] not consider evidence beyond that pleading"). Furthermore, by all accounts, the affidavit required by Delaware's law is a "matte[r] outside the pleadings." Rule 12(d); see *ante*, at 194 ("It is true . . . that an affidavit of merit is a document separate from the 'pleading'").

We know the affidavit of merit qualifies as a "matter outside the pleadings" for several reasons. For one thing, Delaware law provides that the affidavit is to "accompany" the complaint. §6853(a)(1). A thing cannot "accompany" that of which it is already a part.[7] Indeed, Delaware's Legislature apparently felt so strongly about the affidavit not being part of the complaint that it mandated *physical* separation: By statute, the affidavit must be filed in its own sealed envelope, alongside (but apart from) the complaint. See *ibid.* Nor do the Federal Rules suggest that affidavits of the nature specified by the Delaware law *can* qualify as "pleadings." Rule 7, which sets forth a list of "[p]leadings [a]llowed" in federal court, does not include an "affidavit" (or anything like it) on its list.

Page Proof Pending Publication

Pulling these threads together, Delaware's law, as interpreted by the Delaware Supreme Court, requires judges to

---

[7] To be sure, plaintiffs can, in limited contexts, "incorporat[e]" certain documents "into the complaint by reference." *Tellabs, Inc.* v. *Makor Issues & Rights, Ltd.*, 551 U. S. 308, 322 (2007). But the affidavit of merit is not such a document because its content is neither discoverable nor admissible. See §6853(d).

account for a matter *outside the pleadings*—*i. e.*, the existence or sufficiency of an affidavit of merit (or lack thereof)—when deciding whether to dismiss a medical malpractice case. Rule 12(d), however, forbids such extraneous considerations. And Rule 12 is valid under the Rules Enabling Act (for similar reasons as the Court lays out in its opinion, see *ante*, at 198–199). So Delaware's law cannot be enforced in federal court.

As far as I can tell, then, there is no daylight between my view of the Rule 12 conflict and the majority's assessment. But far from "reinforc[ing]" a conflict with Rule 8, *ante*, at 193, our shared evaluation of Rule 12 is, to me, yet another reason why Delaware's law is *not* in conflict with Rule 8. See Part II–B, *supra*. The conflicts analysis concerning these two Rules is based on diametrically opposed characterizations of Delaware's affidavit of merit: The affidavit must be *either* a "matter outside the pleadings" (and thus § 6853 conflicts with Rule 12, per the Delaware Supreme Court's decision in *Hall*) *or* it is part of what the pleadings must contain (giving rise to the purported conflict with Rule 8). A coherent conflicts analysis cannot have it both ways.

Page Proof Pending Publication

* * *

Read for what they are—by their "plain meaning," sensitive to context yet without distortions created by the task of checking for a conflict, see *Walker*, 446 U. S., at 750, n. 9; *Gasperini*, 518 U. S., at 427, n. 7—Rules 3 and 12 answer the same questions as Delaware's affidavit requirement. That means that the majority and I share the same conclusion: There is a conflict between state law and valid Federal Rules, precluding application of Delaware's affidavit requirement in federal court. For the reasons discussed above, I think the majority is wrong to further maintain that § 6853 answers the same question as Rule 8. And I cannot see how the affidavit that the Delaware law requires can be a "matter

outside the pleadings" (for Rule 12-conflict purposes) and also part of the "pleadings" (for Rule 8-conflict purposes). Therefore, I concur only in the judgment.

Page Proof Pending Publication